

COMMERCIAL PRICING AGREEMENT

This Commercial Pricing Agreement ("Agreement") is entered into on **1 July 2025** ("Effective Date") by and between:

CloudSoft Technologies, a corporation organized and existing under the laws of India, having its principal office at Tower 3, Embassy Tech Village, Bengaluru, Karnataka 560103, India (hereinafter referred to as the "**Supplier**", which expression shall include its successors and permitted assigns);

AND

Enterprise Retail Group, a corporation organized and existing under the laws of India, having its principal office at Business Park One, Andheri East, Mumbai, Maharashtra 400093, India (hereinafter referred to as the "**Customer**", which expression shall include its successors and permitted assigns).

The Supplier and the Customer are individually referred to as a "**Party**" and collectively as the "**Parties**."

1. Purpose

1.1 The purpose of this Agreement is to establish the commercial pricing framework governing the licensing, maintenance, support, and future expansion of the Supplier's enterprise software platform licensed to the Customer.

1.2 This Agreement defines the pricing methodology, payment obligations, commercial adjustments, renewal provisions, and other financial terms applicable to software licenses and related services purchased by the Customer.

1.3 Any Statements of Work, Order Forms, License Orders, or amendments executed by the Parties shall be governed by this Agreement unless expressly stated otherwise.

2. Definitions

2.1 **License** means the non-exclusive right granted to the Customer to use the Supplier's software in accordance with this Agreement.

2.2 **Licensed Users** means employees or authorized personnel permitted to access the software.

2.3 **Support Services** means technical assistance, software maintenance, patches, updates, and standard product support provided by the Supplier.

2.4 **Subscription Year** means each consecutive twelve-month period commencing from the Effective Date or any renewal date.

2.5 **Commercial Terms** means the pricing, payment, discount, escalation, renewal, and related financial provisions contained within this Agreement.

3. License Grant

3.1 Subject to compliance with this Agreement, the Supplier grants the Customer a non-exclusive, non-transferable license to use the software for its internal business operations.

3.2 The Customer may deploy the software only in accordance with licensed quantities and applicable documentation.

3.3 Additional licenses may be purchased during the Term under the pricing methodology described in this Agreement.

3.4 Ownership of the software and all associated intellectual property shall remain exclusively with the Supplier.

4. Commercial Pricing

4.1 The Parties agree that the initial enterprise software implementation shall include a **base software license fee of USD 500,000**.

4.2 The base license fee grants the Customer the right to deploy and operate the software in accordance with the license quantities specified in the applicable Order Form.

4.3 The agreed license fee reflects the commercial understanding reached between the Parties for the initial deployment and shall remain fixed for the initial purchase unless otherwise agreed in writing.

4.4 Any expansion of software functionality, additional modules, implementation services, consulting engagements, or professional services requested by the Customer shall be priced separately through mutually agreed commercial documentation.

5. Annual Support Services

5.1 The Customer may receive ongoing software maintenance and technical support from the Supplier throughout the duration of this Agreement.

5.2 The annual support and maintenance fee shall equal **twenty percent (20%) of the applicable software license value**.

5.3 The annual support services include access to software updates, security patches, standard bug fixes, technical assistance during normal business hours, and access to the Supplier's customer support portal.

5.4 Support services do not include custom development, major feature enhancements, consulting engagements, data migration activities, or customer-specific implementation services unless separately agreed.

5.5 Support fees shall become payable annually in advance unless otherwise agreed in writing.

6. Volume Licensing

6.1 The Parties acknowledge that the Customer may increase the number of licensed users during the Term of this Agreement.

6.2 Where the Customer purchases **more than one thousand (1,000) software licenses** under a single commercial transaction or amendment, the Supplier shall apply a **ten percent (10%) volume discount** to the applicable license fees for the licenses exceeding that threshold.

6.3 The Parties acknowledge that the purpose of the volume discount is to encourage wider deployment of the Supplier's software across the Customer's enterprise.

6.4 The volume discount shall apply only to eligible license purchases and shall not reduce applicable support fees, taxes, consulting fees, implementation charges, or third-party software costs unless expressly agreed.

7. Annual Price Adjustment

7.1 Beginning with the first anniversary of the Effective Date, the Supplier may adjust recurring commercial charges to reflect inflation, increased operational costs, product enhancements, and continued investment in software development.

7.2 The Parties agree that recurring commercial charges subject to annual adjustment shall increase by **five percent (5%) per contract year**.

7.3 Such adjustment shall apply prospectively and shall not affect invoices already issued prior to the applicable adjustment date.

7.4 The Supplier shall notify the Customer in writing before implementation of each annual adjustment.

8. Payment Terms

8.1 The Supplier shall issue invoices in accordance with the applicable Order Forms or Statements of Work.

8.2 The Customer shall pay all undisputed invoices within **sixty (60) calendar days** following receipt of a valid invoice.

8.3 Payments shall be made through electronic bank transfer in United States Dollars unless otherwise agreed.

8.4 Any disputed invoice shall be communicated to the Supplier in writing within ten (10) Business Days after receipt, together with reasonable supporting information.

8.5 The Parties shall cooperate in good faith to resolve invoice disputes without unnecessary delay.

8.6 Applicable taxes shall be charged separately where required by applicable law.

9. Audit and License Verification

9.1 The Supplier may request reasonable information necessary to verify compliance with licensed usage levels.

9.2 Any verification activity shall be conducted during normal business hours with reasonable prior notice.

9.3 If verification identifies deployment beyond licensed quantities, the Customer shall promptly purchase the additional required licenses in accordance with the pricing methodology contained in this Agreement.

10. Renewal

10.1 This Agreement shall remain effective for the initial contract term specified in the applicable Order Form.

10.2 Upon expiration of the initial term or any renewal term, this Agreement shall **automatically renew** for successive renewal periods unless either Party provides written notice of cancellation at least **ninety (90) calendar days** before the applicable expiration date.

10.3 All recurring commercial obligations, including support services and annual price adjustments, shall continue throughout any renewal term unless otherwise agreed in writing.

11. Termination

11.1 Either Party may terminate this Agreement upon material breach by the other Party if such breach remains uncured for thirty (30) calendar days following written notice.

11.2 Either Party may terminate this Agreement immediately if the other Party becomes insolvent, enters liquidation, or ceases substantially all business operations.

11.3 Upon termination, the Customer shall discontinue use of the software except where continued use is expressly permitted by a surviving license provision.

11.4 Termination shall not affect payment obligations accrued before the effective date of termination.

12. Intellectual Property

12.1 All software, documentation, trademarks, source code, algorithms, product enhancements, methodologies, and related intellectual property shall remain the exclusive property of the Supplier.

12.2 Except for the license rights expressly granted under this Agreement, no ownership interest is transferred to the Customer.

12.3 Feedback voluntarily provided by the Customer regarding the software may be used by the Supplier to improve future versions of its products without additional compensation.

13. Confidentiality

13.1 Each Party shall protect confidential business, commercial, financial, and technical information received from the other Party.

13.2 Confidential information shall be used solely for purposes of performing obligations under this Agreement.

13.3 These confidentiality obligations shall survive termination of this Agreement for a period of five (5) years.

14. Limitation of Liability

14.1 Neither Party shall be liable for indirect, incidental, consequential, punitive, or special damages, including loss of profits, business interruption, or anticipated savings.

14.2 Except for fraud, willful misconduct, confidentiality breaches, or intellectual property infringement, the aggregate liability of either Party shall not exceed the total fees paid by the Customer during the twelve (12) months immediately preceding the event giving rise to the claim.

15. Governing Law and Dispute Resolution

15.1 This Agreement shall be governed by the laws of India.

15.2 The Parties shall first attempt to resolve disputes through good-faith negotiations between senior management representatives.

15.3 If negotiations fail, disputes shall be referred to arbitration under the Arbitration and Conciliation Act, 1996.

15.4 The seat of arbitration shall be Bengaluru, India.

15.5 Arbitration proceedings shall be conducted in the English language.

16. Force Majeure

16.1 Neither Party shall be responsible for delays caused by events beyond its reasonable control, including natural disasters, pandemics, acts of government, war, labor unrest, or widespread infrastructure failures.

16.2 The affected Party shall promptly notify the other Party of the event and shall use commercially reasonable efforts to resume performance as soon as practicable.

17. Entire Agreement

17.1 This Agreement constitutes the complete commercial understanding between the Parties relating to software pricing and licensing.

17.2 Any amendment or modification shall be valid only if made in writing and signed by authorized representatives of both Parties.

Signatures

IN WITNESS WHEREOF, the Parties have executed this Commercial Pricing Agreement through their duly authorized representatives.

For CloudSoft Technologies

Authorized Signatory

Name: Rohan Desai

Title: Vice President – Commercial Operations

Date: 1 July 2025

Signature: _____

For Enterprise Retail Group

Authorized Signatory

Name: Meera Kapoor

Title: Chief Procurement Officer

Date: 1 July 2025

Signature: _____